

19STCV20502 19STCV20502

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-06-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C224%2C06%2F25%2F2026

Source SHA-256: 5d2efa89f526f4d63b754379a0b9b33f347ec6ce84de1554f5e2c9299539b1c5

Case Number: 19STCV20502 Hearing Date: June 25, 2026 Dept: 224

SC&P Resources, Inc. v. Hermes Capital, Inc.

The Court DENIES the motion to Vacate Wage Garnishment.

The motion is denied on a number of grounds.

The Motion is internally inconsistent and fails to clearly identify the relief sought. While captioned as a motion to vacate the wage garnishment order, the memorandum of points and authorities, the declaration repeatedly references vacating a "default" and "default judgment." The Court has reviewed the docket in this case, and there is no default judgment, nor has moving party filed an exhibit constituting the alleged default judgment it asks this court to vacate.

The Court has verified that Judgment was entered after a court trial where Judgment Debtor was represented by counsel.

With respect to the request to vacate the Order permitting the wage garnishment of judgment debtor's spouse, that is DENIED without prejudice for the Court to hear the debtor spouse's claim of exemption.

At the hearing on June 25, 2026 regarding the nonjudgment debtor spouse's claim of exemption, the nonjudgment debtor did not appear. Judgment creditor appeared and opposed the debtor's claim of exemption in pleadings. Because neither the judgment debtor, nor the judgment debtor's spouse appeared to offer evidence in support of the claim of exemption, the court DENIED the claim of exemption WITHOUT prejudice for the nonjudgment debtor to file a new one, and appear for the hearing.

Accordingly, the Motion is also DENIED, because Judgment Debtors failed to satisfy Code of Civil Procedure section 473(b). Judgment Debtors exclusively rely on C.C.P. § 473(b), yet fail to attach the required proposed pleading as required by the statute. Moving party asks the Court to allow it to oppose the motion permitting wage garnishment. To obtain 473(b) relief, the moving party is required to file the pleading it would have filed - in this case an opposition to the motion. Judgment debtor argues it was not served with the motion for an order permitting the wage garnishment of nonjudgment debtor's spouse, and that it would have opposed the motion. Assuming it is true that the nonjudgment debtor was not served with the motion, to obtain 473(b) relief, the nonjudgment debtor was required to file the the opposition they would have filed. No such document is attached to the CCP 473 b motion.